Master Service Agreement (Excerpt)

Document ID: NCS-LC-MSA-001 | Version: 4.1 | Effective Date: 01 April 2026

Fictional sample document prepared for the Nyaya training lab. Not legal advice, and not a real agreement.

1. Scope

This excerpt from the Master Service Agreement (the "Agreement") governs the enterprise network services provided by NCS Telco+ to the Customer. It sets out fees and payment terms, the limitation of liability, indemnities, and governing law. Capitalised terms have the meanings given in the full Agreement.

2. Fees and Payment

All invoices are payable within thirty (30) days of receipt. Late payments accrue interest at 1.5% per month on the outstanding amount. Fees are exclusive of applicable taxes.

3. Limitation of Liability

Except for the indemnities in Section 4, the aggregate liability of either party under this Agreement, whether in contract, tort, or otherwise, shall not exceed the total fees paid or payable by the Customer in the twelve (12) months immediately preceding the event giving rise to the claim. Neither party shall be liable for indirect, incidental, or consequential damages, including loss of profits, revenue, or data.

4. Indemnification

Each party (the "Indemnifying Party") shall indemnify the other against third-party claims arising from: (a) infringement of intellectual property rights; (b) breach of confidentiality obligations; (c) gross negligence or wilful misconduct; and (d) breach of applicable data protection laws. The indemnified party must notify the Indemnifying Party promptly and must not settle any claim without the Indemnifying Party's consent.

5. Governing Law and Jurisdiction

This Agreement is governed by the laws of India. The courts at Mumbai shall have exclusive jurisdiction over any dispute arising out of or in connection with this Agreement.

6. Term and Termination

The initial term is thirty-six (36) months from the Effective Date, renewing automatically for successive twelve (12) month periods unless either party gives ninety (90) days' written notice. Either party may terminate for material breach if the breach is not cured within thirty (30) days of written notice.

Execution

Signed for and on behalf of NCS Telco+. Authorised signatory PAN on record: QWERT4821M.